IN THE COURT OF APPEAL OF THE DEMOCRATIC

SOCIALIST REPUBLIC OF SRI LANKA

c.A. MIS/OS/20l9

University Appeals Board No:
UNIVOTEClUVBOl/201S/02

In the matter of an appeal under and in terms of
Section 37 of the University of Vocational Technology Act, No. 31 of 200S read with Article 13S of the Constitution of the Democratic Socialist Republic of Sri Lanka.

B.M.T.D. Jayasekara
No.1067/49A,
Pothuarawa Road,
Malabe.
APPELLANT

-Vs-

1. University of Vocational Technology No. 100, Kandawala,
Ratmalana.
2. Prof. G.LD. Wickramasinghe
Vice Chancellor,
University of Vocational Technology,
No. 100, Kandawala,
Ratmalana.
3. Dr. D.D.D. Suraweera, Dean,
Faculty of Industrial Cst Vocational Technology University of Vocational Technology,
No. 100, Kandawala,
Ratmalana.

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4. Mr. LW.S. Kularatne, Dean,
Faculty of Industrial CSt Vocational Technology University of Vocational Technology,
No. 100, Kandawala,
Ratmalana.
5. Mr. T.K Malwatta,
University of Vocational Technology,
No. 100, Kandawala,
Ratmalana.
6. Mr. S.PAR.S.Jayathilake
Uni versity of Vocational Technology,
No. 100, Kandawala,
Ratmalana.
7. Mr. R. Ranepura
Secretary,
Ministry of Skills, Development CSt Vocational Training,
"Nipunatha Piyasa",
No. 354/2,
Narahenpita.
8. Mr. c.Jayasooriya
Additional Director General,
Department of Trade CSt Investment Policy of the Ministry of Finance CSt Mass Media,
The Secretariat,
Colombo 01.
9. Mr. D.C. Dissanayake
Secretary,
Ministry of Higher Education CSt Highways,

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No. IS, Ward Place,
Colombo 07.
10. Mr. P.N.K. Malasekara
Director General,
Department of Technical Education 1St Training, Olcott Mawatha,
Colombo 10.
11. Eng. Lionel Pinto
Chairman,
Vocational Training Authority of Sri Lanka, "Nipunatha Piyasa",
No. 354/2,
Narahenpita.
12. Mr. Shehan Senerviratne
Chairman,
NationalISt Industrial Training Authority.
13. Representative of Board of Investment of Sri Lanka

14. Eng. W.A.u. Gunawardena
Institute of Engineers Sri Lanka.
15. Eng. Javilal Meegoda
Institute of Engineers Sri Lanka,
Wijerama Mawatha,
Colombo 07.
16. Mr. Chandrarathne Vithanage Senior Assistant Secretary General, Ceylon Chamber of Commerce.
17. Mr. Rahula Senanayake No.IS6/2C,

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lumbini lane, Wewalduwa, Kelaniya.
18. Mr. S. Kulasinghe
Epitaha Watta,
Hiyare, Galle.
19. Ms. Rifha Musthafa
No. 23/2,
Tower 'A' ,
Royal Park Condominium, Rajagiriya.
20.Mr. LR.V. Vidyarathne
No. 76,
Dharamapala Mawatha,
Colombo 07.
RESPONDENTS

AND NOW BETWEEN

1. University of Vocational Technology No. 100, Kandawala,
Ratmalana.

2. Prof. G.LD. Wickramasinghe
Vice Chancellor,
U ni versi ty of Vocational Technology,
No. 100, Kandawala,
Ratmalana.
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No. 100, Kandawala,
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University of Vocational Technology,
No. 100, Kandawala,
Ratmalana.
6. Mr. S.P.A.R.S.Jayathilake
University of Vocational Technology,
No. 100, Kandawala,
Ratmalana.
7. Mr. R. Ranepura
Secretary,
Ministry of Skills, Development &: Vocational Training,
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Colombo 01.

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Colombo 07.
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Director General,
Department of Technical Education &: Training, Olcott Mawatha,
Colombo 10.
n. Eng. Lionel Pinto
Chairman,
Vocational Training Authority of Sri Lanka, "Nipunatha Piyasa",
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Colombo 07.
16. Mr. Chandrarathne Vithanage Senior Assistant Secretary General,

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Ceylon Chamber of Commerce.
17. Mr. Rahula Senanayake
No. 186/2C,
Lumbini Lane, Wewalduwa, Kelaniya.
18. Mr. S. Kulasinghe
Epitaha Watta,
Hiyare, Galle.
19. Ms. Rifha Musthafa
No. 23/2,
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20.Mr. LR.V. Vidyarathne
No. 76,
Dharamapala Mawatha,
Colombo 07.
RESPONDENT-APPELLANTS

-Vs-

B.MT.D. Jayasekara
No.1067/49A,
Pothuarawa Road,
Malabe.
APPELLANT -RESPONDENT

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BEFORE

COUNSEL

Argued on

Decided on

A.H.M.D. Nawaz, T. (PICA)

A.H.M.D. Nawaz,J (PICA) &::
Sobhitha Rajakaruna J.

Suren Gnanaraj, SSC for the Respondent-
Appellants
Saliya Edirisinghe for the Appellant-Respondent

23.07.2020

30.11.2020

W hen CA 05/2019 and 06/2019 came up before this Court, Mr. SaliyaEdirisinghe,

Counsel for the Appellant-Respondent raised a preliminary objection that the University of Vocational Technology (the UNIVOTEC-the Appellant) cannot maintain this appeal, as there is no right of appeal bestowed on it.
The learned Counsel premised his preliminary objection on section 37 of the University of Vocational Technology Act, No.31 of 2008.
As could be seen, the only provision that enables a person to appeal against the decision of a University Appeals Board is Section 37 of the University of Vocational Technology Act, No.31 of 2008, which goes as follows:-

"A person aggrieved by the decision of a University Appeals Board in respect of any appeal made under paragraph (a) of subsection (1) of Section 16, many appeal against such decision to the Court of Appeal within fourteen days of the date on which the decision and the reasons therefore were sent to that person by registered post, under Section (4) of Section 36"
The contention of the counsel is that the person referred to in Section 37 denotes a member of the staff of a University because it is to that member of the staff that the decision and the reasons are sent by registered post by virtue of Section 36(4) of the Act. Therefore the

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"person" referred to in Section 37 cannot include a University. Mr. Suren Gnanaraj Senior State Counsel submitted that the operative part of Section 37 is a person aggrieved, which would include a University and so the University-the Appellant in the case, has the locus standi to prefer this appeal. The learned Senior State Counsel contrasted section 37 of the University of Vocational Technology Act, No.31 of 2008 vis-a-vis section 36(1)(a) of the Act. Section 36 (1) (a) of the Act states thus:-
"Where-

(a) an appeal is made by any member of the staffof the University against an appOintment, promotion, dismissal, suspenSion, diSciplinary action taken against him or any salary anomaly; or
(b) .....
the Board shall constitute a University Appeals Board consisting of three members, selected from
and out of the persons appointed to the Panel of Inquiry and Investigation by the Minister under Section 35, to inquire into such appeal or to conduct such investigation, as the case may be.

This provision enables a member of the staff of the University to prefer an appeal against a decision against him to a University Appeals Board. What if this appeal results in a decision against the University? In other words, the member of this staff succeeds in his appeal and the University loses. The learned Counsel for the Appellant (the member of the Staff) argues that if the University loses in the appeal filed by the member of the staff, there is no right of appeal given by Section 37 of the University of Vocational Technology Act, No. 31 of 2008. Section 37, according to Mr. Saliya Edirisinghe, exclusively applies to a member of the staff who had listed his appeal before the University Appeals Board. He alone enjoys the right of appeal of the Court of Appeal by virtue of Section 37. If one were to crystallize the arguments of Mr. Saliya Edirisinghe, the member of the staff has two rights of appeal -firstly, to the University Appeals Board by way of Section 36(1)(a) and second, if he loses the appeal before University Appeals Board, a second right of appeal to the Court of Appeal.

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According to him, if the University loses in the appeal filed by the member of the staff, the University does not enjoy a right of appeal to challenge the decision of the University Appeals Board. This is because no right of appeal has been granted by Section 37.
Mr. Suren Gnanaraj on the other hand contended that Section 37 speaks to a person aggrieved. It includes the University of Vocational Technology which is aggrieved by the decision of the University Appeals Board. Section 37 has to be interpreted in such a way as to enhance the right of appeal. Mr. Suren Gnanaraj, the learned Counsel for the State, also argued that the words "person aggrieved" has to be interpreted in terms of Section 20f the Interpretation Ordinance, wherein the word "person" has been interpreted to include any body of persons corporate or unincorporated.
Thus what comes up for resolution before this Court is the interpretation of Section 37 of the University of Vocational Technology Act, No.3l of 2008.
Undoubtedly Section 36(4) states the modes of communicating the decision of the University Appeals Board to the parties before it.
To the Board of Governors of the University,

1) The Chairman of the University Appeals Board shall convey its decision and the reasons therefore, along with a report on such appeal or investigation.
To the person who preferred the appeal

2) A copy of the decision and of the reasons shall also be sent through registered post within one week of reaching such decision.
This dichotomy seen in the aforesaid section is relied upon by Mr. Saliya Edirisinghe for his contention that Section 37 applies exclusively to the person who preferred the appeal. Section 37 could be summoned up again:-
Section 37 ...

A person aggrieved by the decision of a University Appeals Board in respect of any appeal made under paragraph (a) of subsection (1) of Section 36, may appeal against such decision to the Court of Appeal within fourteen days of the days on which the decision and the

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reasons therefore were sent to that person by registered post, under subsection (4) of Section 36.

It was argued that because Section 36(4) is referred to in the context of the dispatch of the decision and reasons to the member of the staff who preferred the appeal, the person aggrieved in Section 37 must mean the member of the staff and him alone. In other words it is the appellant staff member before the University Appeals Board who could appeal to the Court of Appeal and the University has not been bestowed with such a right of appeal. I am afraid I cannot agree with this interpretation that is sought to be placed on Section 37.

Indubitably, the right of appeal must be conferred by statute. But a synoptic reading of Sections 36(4) and Section 37 along with Section 2 supports the position that a right of appeal is also available to the University.

In my view, though at first blush the words "person aggrieved" read with the words "sent to that person by registered post, under subsections (4) of Section 36" appear to restrict it to a member of the staff who was the appellant, the Rules framed under the Act in regard to University Appeals Board explain what is meant by the words "convey to the board" its decision. The rules have been attached to the documents tendered to the Court and the rules make it a requirement that the final decision of the University Appeals Board shall be communicated to the parties by registered post, and a copy thereof shall be forwarded to the Chairman ofthe Board of Governors of U ni versity of Vocational Technology. Expatiating the words "convey to the board its decision and the reasons therefore, along with a report on such appeal or investigation" in a such a manner as to insist on a mode of conveyance by way of registered post is not repugnant to Section 36(4) of the Act and it is how a parity of equality would be harmOniously read into Section 37 of the UNIVOTEC Act.

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Even the Sinhala version of Section 36(4) of the UNIVOTEC Act makes it clear that a conveyance of the decision and the reasons by registered post to the University is an inescapable requirement.

Apart from the above, the expression 'Aggrieved Person' must be given a wide connotation and the persons directly or indirectly affected or even interested should be permitted to ventilate their grievances in an appeal. An 'Aggrieved Person' is one, who has a legal right to enforce a remedy. In Goa Foundation v. Union ofIndia(2013) All (1) NGT REPORTER (Delhi) 234,the National Green Tribunal examined the ambit and scope of this expression while referring to various judgments of the Supreme Court of India-Aggrieved is a person who has suffered a legal grievance, against whom a decision has been pronounced or who has been refused something.
In the case of Maharaj Singh v. State of Uttar Pradesh(1977) 1 SCC 270, the Supreme Court of India observed that a legal injury creates a remedial right in the injured person. Further in the case of Dr. Duryodhan Sahu v. jithendra Kumar Mishra (1998) 7 SCC 270, the Supreme Court of India held that although the meaning of the expression 'person aggrieved' may vary according to the context of the statute and the facts of the case, nevertheless normally, a person aggrieved must be a man who has suffered a legal grievance, a man against whom a decision has been pronounced which has wrongfully deprived him of something or wrongfully refused him something or wrongfully affected his title to something. In jashhai Motihhai Desai v. Rohan Kumar AIR 1976 SC 578,the Supreme Court of India held that the expression 'aggrieved person' denotes an elastic, and to an extent, an elusive concept. According to the appellant, the Environmental Clearance had been granted arbitrarily and in violation of the Notification of 2006. The appellant claimed to be a resident of that area and to have a direct interest in the environment of the

area.

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Furthermore, the appellant had been pursuing the cause of environment protection before various forums for a considerable time. The National green Tribunal was of the considered opinion that the person who had approached National Green Tribunal was covered within the ambit of the term 'Aggrieved Person' and once he is an 'Aggrieved Person' he would have the locus standi to file the appeal.

This Court had occasion to go into the question of who could be an aggrieved party in a partition appeal from the District Court of Avissawella in the case of Padukka Vidanalage Gunasena and Another v V.R. Rupasinghe CA 853/1999 (F) CA minutes of 08.06.2016, wherein I drew in aid the words of James LJ in the English case of In re 5idebotham (1880) 14 Ch.D.458. The dicta of James LJ which has since been followed in 5evenoaks Urban DC v Twynam (1929) 2 KB 440 and Ealing Corp v Jones (1959) 1 Q.B. 384 goes as follows:

"But the words "person aggrieved" do not really mean a man who is disappointed of a benefit which he might have received if some other order had been made. A "person aggrieved' must be a man who has suffered a legal grievance, a man against whom a decision has been pronounced which wrongly deprived him of something, or wrongly affected his title to something."

Thus I take the view that the legislature has not limited the right of appeal to the Court of Appeal only to "a member of the staff of the University" who prefers an appeal to the University Appeals Board. Thus, the words "a person aggrieved" by the decision of the University Appeals Board would include both the member of the staff who preferred the appeal and the UNIVOTEC.
Section 37 does confer a right of appeal on the UNIVOTEC and the words reasons therefor were sent to that person by registered post, under subsection (4) of Section 36" would also be apposite to the UNIVOTEC, as a conveyance of a decision by registered post to UNIVOTEC is an indispensable requirement by virtue of Section 36(4), and Section 37 of the UNIVOTEC Act, read with Section 2 of the Interpretation Ordinance. Section 36(4) of the UNIVOTEC Act in Sinhala and the rules framed under the UNIVOTEC Act in

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relation to Urnversity Appeals Board fortify the interpretation which I reach on Section
37.

A slew of case law on interpretations cited by the learned Senior State Counsel favour the holistic interpretation I have reached.
S.N. Silva,].[(P/CA) as he then was} m Wickremaratne v Samarawickrema and Others(199S) 2 SLR 212 at p.217 citing Maxwell, The Interpretation of Statutes, 12th Edition page 76 held:
.... Whenever a statute or document is to be construed it must be construed not according to the mere ordinary general meaning of the words, but according to the ordinary meaning of the words as applied to the subject-matter with regard to which they are used. '
In Gartise v. I.R.e. Lord Reid observed as follows:
'If the language is capable of more than one interpretation, we ought to discard the more natural meaning if it leads to an unreasonable result, and adopt that interpretation which leads to a reasonably practicable result. '
In Fry v.I.R.e. Romer LJ. observed as follows:
'The court ... when faced with two possible constructions of legislative language, is entitled to look to the results of adopting each of the alternatives respectively in its quest for the true intention of Parliament ..

In statutory interpretation there is a presumption that the Legislature did not intend what is inconvenient or unreasonable. The nile is that the construction most agreeable to justice and reason should begiven. Maxwell (p 199) has stated this rule of interpretation as follows:
'In determining either the general object of the legislature, or the meaning of its language in any particular passage, it is obvious that the intention which appears to be most in accord with convenience, reason, justice and legal principles shou ld, in all cases of doubtful significance, be presumed to be the true one. 'An intention to produce an unreasonable result is not to be imputed to a statute if there is some other construction available.'

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S.N.Silva, C]. in Omalpe Sobitha Thera v. Dayananda Dissanayaka and another(2008)
2 SlR 121 at p.l37 citing with approval the dicta of the Supreme Court of India in the case
of Bhatia I ntemational v Bulk Trading S.A (11) at 1437 and 1438, stated as follows:

'The courts have taken the view that the judicial art of interpretation and appraisal is imbued with creativity and realism and since interpretation always implied a degree of discretion and choice, the court would adopt particularly in areas such as constitutional adjudication dealing with social and (SiC) rights. Courts are therefore, held as 'finishers, refiners, and polishers of legislatures which gives them in a state requiring varying degrees of further processing. If language used is capable of bearing more than one construction, in selecting the true meaning, regard must be had to the consequences, resulting from adopting the alternative constructions. A construction that results in hardship, serious inconvenience, injustice, absurdity or anomaly or which leads to inconsistency or uncertainty and friction in the system which the statute purports to regulate has to be rejected and preference should be given to that construction which avoids such results. In selecting out of different interpretations the court will adopt that which is just reasonable and sensible rather than that which is none of those things, as it may be presumed that the legislature should have used the word in that interpretation which least offends our sense of justice. '

In the circumstances, I proceed to hold that the UNIVOTEC enjoys a right of appeal to have and maintain this appeal before this Court. I thus overrule the preliminary objections and set this matter down for hearing on the merits.

Sobhitha Raj akarun a J.
I agree

PRESIDENT OF THE COURT OF APPEAL

JUDGE OF THE COURT OF APPEAL
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